

24STCV06913 24STCV06913

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Case Number: 24STCV06913 Hearing Date: July 22, 2026 Dept: 516

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Case Name: Scarlett v. Women's Center
for Pelvic Wellness, Inc., et al.

Case

No.: 24STCV06913

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants Women's

Center for Pelvic Wellness, Inc., Women's Center for Pelvic Wellness, Alexis
May Kimble, and David Kimble

Responding Party: Plaintiff Selame Scarlett

Tentative

Ruling: The hearing on Defendants

Women's Center for Pelvic Wellness, Inc., Women's Center for Pelvic Wellness,
Alexis May Kimble, and David Kimble's demurrer and motion to strike is
continued to August 21, 2026.

Plaintiff

Selame Scarlett ("Plaintiff") filed this action against Defendants Women's
Center for Pelvic Wellness, Inc., Women's Center for Pelvic Wellness, Alexis
May Kimble, and David Kimble (collectively "Defendants"), and Does 1 through
100. The Third Amended Complaint ("TAC") alleges five causes of action for: (1)

violation of Labor Code section 233; (2) violation of Labor Code section 1102.5; (3) violation of Labor Code section 98.6; (4) failure to reimburse for business expenses pursuant to California Labor Code section 2802; and (5) violation of Labor Code section 558.1.

Defendants

demur to Plaintiff's TAC, and moves to strike portions of Plaintiff's pleading. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendants contend that on March

20, 2026, they met and conferred with Plaintiff through email. (Lee Decl., ¶ 2.) However, this is not a proper meet-and-confer as required by statute. (Code Civ. Proc. § 430.41, subd. (a); Code Civ. Proc. §435.5, subd. (a).)

In reply, Defendants argue that

failure to properly meet and confer is not a basis to sustain or overrule their demurrer. While Defendants are correct, the Court will not rule on Defendants' demurrer and motion to strike until the parties meet and confer in accordance with the Code.

The Court has previously informed

Defendants of the requirement to meet and confer, continued the hearing on the demurrer to the Second Amended Complaint, and Defendants did not comply with the Court's order to meet and confer and did not file a declaration for failing to meet and confer. (March 16, 2026, Minute Order; April 15, 2026, Minute Order.)

Thus, the Court will continue the

hearing on Defendants' demurrer and motion to strike to allow the parties to meet and confer in good faith.

Conclusion

The

hearing on Defendants Women's Center for Pelvic Wellness, Inc., Women's Center for Pelvic Wellness, Alexis May Kimble, and David Kimble's demurrer and motion to strike is continued to August 21, 2026.

Defendants

are ordered to meet and confer with Plaintiffs within 14 calendar days of this hearing. Defendants are ordered to file a meet-and-confer declaration in compliance with the respective code sections. (Code Civ. Proc. § 430.41, subd. (a); Code Civ. Proc. §435.5, subd. (a).) Defendants' meet-and-confer declaration is due on August 11, 2026.